



U.S. Department
of Transportation

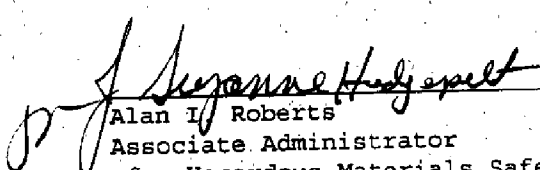
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9746 (EXTENSION)
FIRST REVISION October 3, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9746 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 30 1994

(DATE),

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

BOC Gases
San Marcos, CA

August 10, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 9746
(FIRST REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

1. Air Products & Chemicals, Inc., (APCI), Allentown, Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of the hazardous material described in paragraph 3 below for transportation in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the use of DOT Specification 3BN cylinders, a specification cylinder not presently authorized, for the material identified in paragraph 4 below, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on APCI's applications dated February 19, 1987 and April 20, 1988 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Hydrogen fluoride, anhydrous classed as a Corrosive material.
4. PROPER SHIPPING NAME (40 CFR 172.101). Hydrogen fluoride, anhydrous.
5. REGULATION AFFECTED. 49 CFR 173.264.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT 3BN Specification cylinder (49 CFR 178.39).
8. SPECIAL PROVISIONS.
 - a. A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.
 - b. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
 - c. Drivers and masters of vessels must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire or accident.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the Office of Hazardous Materials Transportation as soon as practicable.
10. EXPIRATION DATE. May 31, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

OCT 3 1988

(DATE)

Continuation of 1st Rev. DOT-E 9746

OCT 3 1988

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Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA, USCG